

the whole will that the executors were intended to take beneficially, the statute is excluded (*e*).

8. **Fraud.** — An exception to the rule, that parol trusts cannot be declared upon an estate devised by a will, exists in the case of fraud. The Court will never allow a man to take advantage of his own wrong, and therefore if an heir, or devisee, or legatee, or next of kin, contrive to secure to himself the succession of the property through fraud, the Court affects the conscience of the legal holder, and converts him into a trustee, and compels him to execute the disappointed intention.

Case of fraud in heir. — Thus if the owner of an estate hold a conversation with the heir, and be led by him to believe that if the estate be suffered to descend, the heir will make a certain provision for the mother, wife, or child of the testator, a Court of Equity, notwithstanding the Statute of Wills, will oblige the heir to make a provision in conformity with the express or implied engagement; for the heir ought to have informed the testator that he, the heir, would not hold himself bound to give effect to the intention, and then the testator would have had the opportunity of intercepting the right of the heir by making a will (*f*).

In devisee. — So if a father devise to his youngest son, who promises that if the estate be given to him he will pay 10,000*l.* to the eldest son, the Court, at the instance of the eldest son, will compel the youngest son to disclose what passed between him and the testator, and if he acknowledge the engagement, though he pray the benefit * of the statute in bar, he will be a trustee for the [*62] eldest son to the extent of 10,000*l.* (*a*).

In legatee. — And so, generally, if a testator devise real estate or bequeath personal estate to A., *the beneficial owner upon the face of the will*, but upon the understanding between

495; [Dillon v. Reilly, 9 L. R. Ir. 57; *Re Mary Hudson's Trusts*, 52 L. J. N. S. Ch. 789.]

(*e*) Harrison v. Harrison, 2 H. & M. 237; and see Williams v. Arkle, 7 L. R. H. L. 606.

(*f*) Sellack v. Harris, 5 Vin. Ab.

521; Stickland v. Aldridge, 9 Ves. 219, *per* Lord Eldon; Harris v. Horwell, Gilb. Eq. Rep. 11; McCormick v. Grogan, 4 L. R. H. L. 88, *per* L. C. (a) Stickland v. Aldridge, 9 Ves. 519.